

23SMCV05502 23SMCV05502

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Division: Civil Law and Motion

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Case Number: 23SMCV05502 Hearing Date: July 7, 2026 Dept: N

TENTATIVE RULING

Defendant/Cross-Defendant Parker Noel's Motion for Leave to File a First Amended Cross-Complaint is GRANTED. Noel to separately file the first amended cross-complaint within 10 days of this order.

Noel to give notice.

Noel represents discovery revealed new and different information supporting the proposed new defendants and additional causes of action. Noel denies any prejudice. Noel concludes with a position that all claims relate back to the original filing date. A proposed copy of the first amended complaint is included. [Declaration of James G. Bohm, ¶¶ 4-5, Ex. A-B.]

Pickford Real Estate, Inc. dba Berkshire Hathaway Home Services California Properties (Pickford) in opposition challenges the proposed pleading as unreasonably delayed without excuse, and generating great prejudice. Pickford also challenges any basis of liability pled against the proposed, new cross-defendants.

Noel in reply challenges any premature determination as to the merits of any claims against the proposed new defendants, denies any substantial prejudice, and maintains a sufficient showing of reasonable conduct leading to the proposed amended cross-complaint. Counsel also presents a supplemental reply more specifically articulating the timeline for the motion, based at least in part on the October 23, 2025, and December 16, 2025 depositions of Leslie Gornik and Patrick McKenna. The depositions led to the discovery of the additional facts supporting the new claims. [Supp. Decl. James G. Bohm, ¶¶ 5-6.] The new proposed defendants were substituted into the case on May 5, 2026, and the motion was filed on May 8, 2026.

While the original motion and declaration lacked specific information regarding the timing of the exact discovery, the reply and supplemental declaration sufficiently explain the basis for the later discovery. The delays between the last deposition in December 2025, and the filing of the motion in May 2026, in no way demonstrates dilatory conduct supporting a finding of material prejudice. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.) The trial remains set for June 2027, thereby leaving Pickford sufficient time to address any and all new allegations. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.)

Pickford otherwise lacks standing to address any positions as to the proposed, but not yet appearing new cross-defendants. Regardless, Pickford establishes no bar as a matter of law. Cross-Defendants may proceed via demurrer or motion to strike. (*Kittredge Sports Co. v. Sup.Ct. (Marker, U.S.A.)* (1989) 213 Cal. App.3d 1045, 1048; *California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280–281 disapproved of on other grounds by *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390.)

The motion for leave to amend is granted. Noel to separately file the proposed first amended cross-complaint within 10 days of this order.